

is required. Plaintiff did not file an Opposition to the Demurrer and Motion to Strike. Without proper notice to Plaintiff, the Demurrer and Motion to Strike are **OVERRULED/DENIED** without prejudice. Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE: WRIGHT

CASE NUMBER: 26CV-0210187

Ruling on Petition for Change of Name: Petitioner Cynthia Marie Wright seeks to change her name to Katheryn Elizabeth Nickell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

WYNHOFF VS. CITY OF REDDING

CASE NUMBER: 24CV-0204924

Tentative Ruling on Pitchess Motion: Defendant City of Redding filed a Motion for Disclosure of Peace Officer Personnel Records (Pitchess) seeking records from the County of Siskiyou regarding Plaintiff September Wynhoff. The Proof of Service attached to the motion indicates electronic service on four individuals with County of Siskiyou email addresses. The County of Siskiyou has appeared in this matter for a previous Pitchess motion and has been consistently represented by James R. Ross from Renne Public Law Group. Renne Public Law Group first appeared in a stipulation filed July 16, 2025 regarding the previous Pitchess motion and Renne Public Law Group has represented the County of Siskiyou throughout the entire previous Pitchess motion, including filing the Opposition, attending the hearing, attending the in camera review, and providing responsive records to the court. Nothing has been filed to indicate that Renne Public Law Group is no longer representing the County of Siskiyou. Siskiyou County Counsel has never appeared in this action on behalf of the County of Siskiyou.

Defendant City of Redding is again seeking records from the County of Siskiyou, but did not serve Renne Public Law Group. No Opposition to the motion has been filed. Where a party has an attorney in the action or proceeding, the service of papers must be upon the attorney instead of the party. CCP § 1015. Without proper service on the County of Siskiyou and there being no Opposition on file, the Court **DENIES** the motion without prejudice. Should Defendant City of Redding prefer a continuance of the hearing date in order to properly serve the County of Siskiyou through counsel of record, counsel may appear at the hearing to request a new hearing date. Otherwise, the Court will modify the proposed Order submitted by the City of Redding.

YATES VS. GENERAL MOTORS, LLC

CASE NUMBER: 24CV-0206692

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiff Mitchell Yates filed this Song-Beverly Consumer Warranty Act case on December 23, 2024, alleging that his 2021 GMC Sierra was defective and that GM failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. Pursuant to a CCP section 998 Offer to Compromise executed November 13, 2025, Defendant agreed to designate Plaintiff as the prevailing party and pay Plaintiff's attorney fees and costs upon motion. Plaintiff requests that the Court award \$38,286.73 in attorney fees and costs, plus a 0.3 multiplier, for a total award of \$47,996.98. GM opposes hourly rates, total hours, and costs. GM requests an award not exceeding \$8,437.05 in fees plus \$435.00 in costs.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and